

1 HOUSE BILL NO. 122

2 INTRODUCED BY L. BREWSTER

3
4 A BILL FOR AN ACT ENTITLED: "AN ACT REVISING RIGHT-OF-WAY LAWS FOR UTILITY LINES AND
5 FACILITIES TO INCLUDE BROADBAND LINES AND NATURAL GAS PIPELINES; AND AMENDING
6 SECTION 69-4-101, MCA."
7

8 BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:
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10 **Section 1.** Section 69-4-101, MCA, is amended to read:

11 **"69-4-101. Use of public right-of-way for utility lines and facilities.** A telegraph, telephone, electric
12 light, broadband, natural gas, or electric power line corporation or public body or any other person owning or
13 operating such a telegraph, telephone, electric light, broadband, or electric power line or natural gas pipeline is
14 hereby authorized to install its respective plants and appliances necessary for service and to supply and
15 distribute electricity and natural gas for lighting, heating, power, and other purposes and ~~to that end, to~~
16 construct ~~such the~~ telegraph, telephone, electric light, broadband, or electric power lines or natural gas
17 pipelines, from point to point, along and ~~upon on~~ any of the public roads, streets, and highways in the state; by
18 the erection of necessary fixtures, including posts, piers, and abutments necessary for the wires and pipelines.
19 ~~The same shall telegraph, telephone, electric light, broadband, or electric power lines or natural gas pipelines~~
20 must be so-constructed so as not to ~~incommode~~ inconvenience or endanger the public in the use of ~~said the~~
21 roads, streets, or highways, and nothing ~~herein shall be so in this section may be~~ construed as to restrict the
22 powers of city or town councils."
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- END -